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**PETITION OF FORD MOTOR
COMPANY FOR DECLARATORY
ORDER**

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**PUBLIC UTILITY COMMISSION

OF TEXAS**

**VEHICLE-GRID INTEGRATION COUNCIL’S COMMENTS IN SUPPORT OF THE
PETITION FOR DECLARATORY ORDER**

On December 29, 2025, Ford Motor Company (“Ford”) filed a petition seeking a declaratory order related to the interpretation of the Commission’s rule at 16 Texas Administrative Code (“TAC”) § 25.211. On February 27, 2026, the Vehicle-Grid Integration Council (“VGIC”) filed and served *Vehicle-Grid Integration Council’s Motion to Intervene* in accordance with 16 TAC §§ 22.103 and 22.104. VGIC respectfully submits these comments in support of the Petition for Declaratory Order (“Petition”) filed by Ford on December 29, 2025.

I. INTRODUCTION

1. VGIC is a national 501(c)6 member-based advocacy group committed to advancing the role of vehicle-grid integration (“VGI”) through policy development, education, and research. VGIC aims to ensure that the value of flexible EV charging and discharging is recognized and compensated for, thereby achieving a more reliable, affordable, and efficient electric grid.
2. VGIC supports Ford’s request for a Declaratory Order clarifying the applicability of TAC 25.211 to systems using Home Backup Power (“HBP”) features.

II. COMMENTS

3. VGIC has engaged closely with automakers, utilities, third-party testing laboratories, EV charging equipment manufacturers, vehicle-grid integration (“VGI”) aggregators and service providers, policy-makers, non-profit organizations, and academics since 2020 on the topic of bidirectional charging systems, including through the development of its *V2X Bidirectional*

*Charging Systems: Best Practices for Service Connection or Interconnection.*¹ Additionally, as noted in the Petition, the Electric Power Research Institute (“EPRI”) conducted laboratory assessments confirming that the HBP features provide backup power only after the system is properly disconnected from the grid. Based on EPRI’s investigation and VGIC’s prior experience on this topic, the Commission granting Ford’s request through a Declaratory Order would constitute a reasonable formalization and confirmation of a practice already implemented and, in some cases, clarified, in markets across the U.S.

4. VGIC agrees with the Petition’s interpretation that the HBP feature utilizing a “break-before-make” isolation logic does not constitute “parallel operation” and therefore should not be subject to interconnection requirements. As determined by EPRI, these systems are incapable of inadvertently back-feeding the grid during operation and therefore cannot impact power quality or safety.

5. VGIC is concerned by the Petition’s report that at least one distribution utility in Texas requires customers with HBP systems to navigate complex, time-consuming interconnection processes designed for grid-parallel distributed generation. Subjecting HBP systems to these procedures creates a significant and unjustified barrier to market development, imposing an administrative burden on customers without providing any grid safety benefit.

6. Lastly, VGIC notes that granting this Petition would align Texas with other regulatory jurisdictions. For example, the Michigan Public Service Commission recently issued a declaratory ruling finding that Ford’s HBP feature does not require interconnection authorization because it prevents parallel operation. Building this type of consistency across jurisdictions is

¹ V2X Bidirectional Charging Systems: Best Practices for Service Connection or Interconnection, August 2022. <https://www.vgicouncil.org/s/VGIC-Special-Initiative-2022.pdf>

critical to reducing friction in the relatively nascent VGI solutions market, ensuring EVs remain a valuable, safe, and relatively inexpensive backup power option for Texans.

III. CONCLUSION

VGIC respectfully requests that the Commission grant Ford's Petition, affirming that its isolated backup systems do not trigger interconnection requirements.

Respectfully submitted,

VEHICLE-GRID INTEGRATION COUNCIL

/s/ Zach Woogen

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of these comments was served via electronic mail on all parties of record in this proceeding on this 27th day of February, 2026, in accordance with the Commission's Second Order Suspending Rules in Project No. 50664.

/s/ Zach Woogen

Zach Woogen
Executive Director